CBI had given the court about 5,000 pages of transcription in a sealed cover for the eyes of the judges only. But these found their way outside the court and a leading newspaper published ‘incriminatory details from the tapes’. On 12 August 2013, the CBI and Ratan moved for contempt of court against the newspaper. Harish Salve pointed out that it was not the first time that such a leak had taken place. He also called for an investigation by the Central Vigilance Commission (CVC) or ‘some other authority’ to unearth the source of the disclosure.

Nine days later, the case came up for hearing in the Supreme Court. This time, the atmosphere in the courtroom was charged. Ratan arrived along with his lawyer, Raian Karanjawala, for the hearing. It was the first time that Ratan was attending a hearing in the Supreme Court. Salve was already there to represent him.

Arguing before Judges G.S. Singhvi and V. Gopala Gowda for nearly two hours, Salve articulated the importance of the right to privacy. This should have qualified as an open-and-shut case, he said. What was published were some simple social conversations with absolutely no criminal conspiracy angle in it.

Salve also criticized the ‘lackadaisical approach on part of government in finding out the source of leakage’. He alleged, ‘It … [was] carefully designed to exculpate the Income Tax Department and its officials [who tapped the phones]. They wanted to give themselves [a] clean chit … [by] pointing towards CBI for the leakage.’

Ratan also argued that the Income Tax Department had tapped the conversations under a statutory power given to collect information on tax evasion. The logical corollary to this would be that they had no right to any material that did not deal with tax issues. Consequently, they should have had no right whatsoever to preserve any conversations which had no tax implications.

A corresponding duty was, therefore, cast upon the department to ensure that the information was not leaked. The Income Tax Department had evidently failed on both counts. K.K. Venugopal, a legal luminary and CBI counsel, lamented the leak. On this issue, he told the court: ‘It [the leak] has to be investigated. The document was confidential and was only for judges. It is court’s property. This should not have been leaked. It has to be investigated.’